Firma A - Services Agreement

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Source page 1

SERVICES AGREEMENT This Services Agreement (this “Services Agreement,”) and together with all SOWs (as defined below), this “Agreement”) is made and entered into as of the date of the last signature below (the “Effective Date”) by and between Firma A and its Affiliates (“Company”) and Service Provider [REGISTRATION AND ADDRESS REMOVED] (“Contractor”). For purposes of this Agreement, "Affiliates" means any person or entity directly or indirectly controlling, controlled by, or under common control with a party to this Agreement. In consideration of the mutual covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Services.

1.1 General. Contractor will perform certain services and deliver certain deliverables (“Deliverables”) pursuant to mutually agreed upon statements of work (each an “SOW”) (collectively, the “Services”). Each SOW will include, at a minimum, a description of the Deliverables to be developed by Contractor, the schedule for the delivery of the Deliverables, the specifications applicable to each Deliverable (the “Specifications”), and the associated fees for the development and delivery of the Deliverables and performance of the Services (the “Fees”). Each SOW will be deemed incorporated into this Agreement by reference and made an integral part of this Agreement when each such SOW has been signed by each party. The first SOW will be denoted as Exhibit A-1, and subsequent SOWs will be consecutively numbered in increasing order. To the extent that a conflict arises between the terms and conditions of a SOW and the terms and conditions of this Agreement, the terms of this Agreement will govern. Further, any and all services, functions and responsibilities that are not specifically described in this Agreement but that are inherent, necessary or customary to the purposes set forth in this Agreement are deemed to be included within the scope of the Services as if expressly described in this Agreement.

1.2 Manner and Means of Performance. Contractor will control the manner and means by which Contractor renders Services and will at all times act in a manner consistent with Contractor’s status as an independent contractor. Contractor represents that Contractor possesses and will maintain the training and requisite skills needed to perform the Services, and acknowledges that Company has entered into this Agreement based on Contractor’s representations about Contractor’s ability and qualifications to perform the Services. Contractor will procure the materials, equipment and tools that Contractor determines are needed to provide the Services. Except as set forth in Section 2 below, Contractor is solely responsible for any expenses Contractor incurs while performing the Services, such as office space, supplies, Internet connection, technology devices, mobile telephones, parking, meals, lodging and other travel related costs.

1.3 Representatives. Contractor may not engage any subcontractors to perform the Services without Company’s prior written consent in each instance. Subject to the foregoing sentence, all Contractor employees and subcontractors who perform the Services will be referred to herein as “Representatives.” Contractor assumes full and sole responsibility for the acts of Representatives (including, without limitation, any breaches of Section 3), and for the payment of all compensation and expenses of these Representatives and for all state and federal income tax, unemployment insurance, social security, disability insurance, and other applicable withholdings. Further, Contractor will be responsible for acts or omissions of all of the Representatives to the same extent as if such acts or omissions were undertaken by Contractor, and for the purposes of this Agreement, work performed or acts or omissions undertaken by such Representatives will be deemed to have been performed or undertaken, as the case may be, by Contractor.

1.4 Change Orders. Company may reasonably request in writing that revisions be made

Source page 2

with respect to the Services or Deliverables (“Change Order”) at any time during the term of this Agreement. If a Change Order recites revisions that materially increase the scope of Services or the effort, time, resources, or expense required to deliver Deliverables, then within five business days after Contractor’s receipt of such Change Order, Contractor must deliver to Company a written revision of the SOW (a “Change Order Estimate”) reflecting Contractor’s reasonable determination of the revised Services, Deliverables, fees, and schedule for the delivery of the Deliverables, if any, that will apply to the implementation of such revisions, such determination to be made in good faith and in accordance with industry standards and consistent with the manner in which the fees were calculated prior to such proposed Change Order, or such lower rates as Contractor may offer any third party. If Company approves a Change Order Estimate in writing, then the parties must execute it, and upon execution, the revised SOW will supersede the then-existing SOW. If Company does not approve a Change Order Estimate in writing within five business days after its receipt of the Change Order Estimate, the then-existing SOW will remain in full force and effect, and Contractor will have no further obligation with respect to the applicable Change Order.

1.5 Delivery. Contractor must, at such times as specified in the SOW and as reasonably requested by Company, make delivery to Company of any Deliverables then in progress (along with all applicable Source Materials (as defined below)), and Contractor must grant Company reasonable remote access (such as FTP, VPN, SSH, or similar remote access technology) during the term of this Agreement to obtain and review Deliverables then in progress. For the purpose of this Agreement, “Source Materials” means any and all human readable source code and materials underlying a Deliverable, including all computer software, tools, or applications (which includes reasonable programmers’ comments), layered design files for any visual design or user interface, die-lines, CAD or STP files, high resolution image and other media asset files, and all similar materials that are necessary to enable full use and maintenance of such Deliverable.

1.6 Acceptance. Contractor will deliver each Deliverable to Company on or before the applicable date set forth in the SOW. Upon Company’s receipt of a Deliverable, Company will review and otherwise evaluate such Deliverable. Within 30 days of Company’s receipt of such Deliverable, Company will provide Contractor with written notice of acceptance of such Deliverable or a statement of the defects to be corrected. In the event that Company provides Contractor with a written statement of defects, Contractor will redesign such Deliverable and return the reconfigured Deliverable no later than 15 days after receipt of such written statement of the defects to be corrected. The foregoing process will continue until Company accepts such Deliverable in accordance with this Section 1.6, subject to any additional terms set forth in the applicable SOW; provided, however, if Contractor fails to deliver a Deliverable in a form acceptable to Company upon Contractor’s second submission under this Section 1.6, Company may immediately terminate this Agreement for cause.

1.7 Company Materials.

1.7.1 Materials Receipt. In order for Contractor to perform the Services, Company may provide Contractor with certain hardware, software or other materials (“Company Materials”). Each Company Material that Company agrees to loan to Contractor for off-site access will be documented in a materials receipt in the form attached hereto as Exhibit C (each, a “Materials Receipt”), signed by Contractor, that specifies (a) the Company Materials to be provided, (b) the location at which such Company Materials must be maintained by Contractor (the “Authorized Location”), (c) the return date by which the Company Materials must be returned (the “Return Date”), (d) the security requirements that Contractor will use to protect the Company Materials (the “Security Requirements”), (e) the procedures by which the Company Materials will be delivered and returned, and (f) any additional terms specific to the type of Company Materials being provided.

Source page 3

Notwithstanding the foregoing, all Company Materials provided by Company to Contractor will be governed by this Agreement, regardless of whether such Company Materials are specifically listed on a Materials Receipt.

1.7.2 Security Requirements. Contractor agrees that Contractor’s use of any Company Materials is governed by the Security Requirements, as well as any additional guidelines (both written or verbal) that may be provided by Company to Contractor from time-to-time. In the event of any actual or suspected unauthorized access, use, disclosure or loss of the Company Materials or other related Confidential Information (“Security Breach”),

Contractor will (a) immediately notify Company of the Security Breach, (b) help Company investigate, remedy and take any other action Company deems necessary regarding the Security Breach, and (c) immediately make the Company Materials available for return to Company as described in the applicable Materials Receipt. In addition to complying with the Security Requirements, Contractor will establish and maintain administrative, physical and technical safeguards designed to prevent any Security Breach. Company or its designee may: (i) require Contractor to send written certification of compliance with the Security Requirements within 24 hours of Company's request; and (ii) upon reasonable notice, audit the records and electronic logs of access to Company Materials. Contractor agrees to provide all cooperation and assistance as Company may reasonably request to enable Company to determine and remediate compliance with the Security Requirements.

1.7.3 Segregation of Materials. Company retains all right, title, and interest to the Company Materials. Company will, to the extent possible, mark all Company Materials as Company property prior to delivery to Contractor and Contractor agrees not to remove or obscure any such markings. Contractor will segregate the Company Materials from the property of Contractor. In the event that bankruptcy or similar proceedings are brought against Contractor, or as otherwise deemed reasonably necessary by Company, Contractor hereby grants Company the right to enter Contractor's premise upon advance written notice solely for the purpose of retrieving the Company Materials.

1.7.4 Risk of Loss or Damage. Company has invested significant time, money and resources in the development of the Company Materials, as well as in Company's effort to maintain the secrecy of the Company Materials prior to their commercial release. As such, Contractor hereby assumes all risk of loss or damage to the Company Materials while in Contractor's possession or control. Contractor will notify Company immediately if the Company Materials are lost, stolen, damaged or tampered with and, in any such event, will be liable to Company as follows: (i) If the Company Materials are lost, stolen or tampered with as a result of Contractor's breach of its obligations under this Agreement (including the Security Requirements), Contractor will be responsible for all loss, damage or other harm that Company can reasonably demonstrate it incurred as a result of such breach, including (A) direct damages, (B) indirect, incidental, collateral, consequential or special damages or lost profits ("Consequential Damages"), and (C) reasonable attorney's fees, costs and disbursements. Contractor agrees that Company will incur such damages if Contractor breaches this Agreement and that Company's recovery of any such damages (including Consequential Damages) is reasonable under such circumstances. Contractor will not assert that any such damages (including Consequential Damages) are disclaimed or unrecoverable due to their nature. (ii) If the Company Materials are intentionally damaged by Contractor, Contractor will promptly pay Company the liquidated damages amount specified for a "Fault Damage Event" in the applicable Materials Receipt.

Source page 4

(iii) If the Company Materials are damaged as a result of Contractor's negligence, Contractor will promptly pay Company the liquidated damages amount specified for a "Non-Fault Damage Event" in the applicable Materials Receipt. The parties acknowledge that the liquidated damages amounts described in clause (ii) and (iii) above are good faith estimates of the damages Company may incur as a result of a Fault Damage Event or Non-Fault Damage Event, respectively, and are not intended to be a penalty. These amounts are intended to compensate Company solely for damage to the Company Materials, and are in addition to any other remedies to which Company may be entitled to for other reasons (including in connection with Contractor's breach of its obligations under this Agreement). This Section 1.7 will govern over any conflicting limitation of liability or disclaimer of damages applicable to Contractor's use of the Company Materials set forth in any other agreement between the parties. (e) Return. Company will deliver, and Contractor will return, the Company Materials in accordance with the delivery and return process described on the applicable Materials Receipt and in accordance with the applicable Security Requirements or as otherwise instructed by Company in writing. Return of the Company Materials by Contractor will be made upon the earlier of: (i) termination of this Agreement; (ii) immediately upon Company's request for same; or (iii) the Return Date.

1.8 On-Site Services. Contractor will comply with all Company policies, rules and procedures applicable to working on-site at such location ("On-Site Services") that are posted at the location or otherwise provided by or made available by Company to Contractor, including the terms in the attached Exhibit B (and all attachments thereto) and all reasonable access, security and/or information-systems-related policies. Without limiting the foregoing, to the extent that Contractor is authorized to connect to Company's network or otherwise gain

access to Company’s computer systems or software for purposes of performing its obligations hereunder, Contractor shall (a) use such access solely for the purpose of fulfilling Contractor’s obligations under this Agreement; (b) if such access is obtained remotely, obtain access through a secure connection and in accordance with Company’s policies for third-party connections; and (c) only access equipment or software that is necessary for Contractor’s performance of its obligations hereunder, and will not access any other Company or third-party systems, databases, equipment or software.

1.9 Additional Conditions for On-Site Services. For On-Site Services, the additional terms and conditions below and the terms in Exhibit B (including any attachments thereto) will apply:

1.9.1 Contractor will not engage any individual to perform On-Site Services on behalf of Contractor who is dishonest, dangerous or otherwise unqualified to perform the On-Site Services. Before any individual may perform On-Site Services, Contractor will, at Contractor’s sole cost and expense, conduct a background check on such individual in accordance with applicable law and the processes and scope generally used by Contractor in connection with its own hiring screening practices (each, a “Background Check”). Each Background Check must include (a) state, county and federal criminal background checks (including a sex offender registry check) for such individual in the state where such individual will be performing the On-Site Services and any other states and counties where such individual has resided within the past 10 years or since the age of 18 (whichever is shorter), and (b) an illegal substance test (including, if the individual will be performing the On-Site Services for a period longer than one year, an annual illegal substance test during the term of such On-Site Services). If a Background Check identifies any negative information

Source page 5

regarding an individual (including a failed illegal substance test), such individual may not perform, or continue to perform, On-Site Services without Company’s prior written approval in each instance.

1.9.2 Designated Personnel for On-Site Services. Contractor will provide Company a list of those employees and contractors who may provide On-Site Services on Contractor's behalf prior to performance of On-Site Services and must identify those individuals who are contractors as opposed to employees of Contractor therein. Once approved by Company, such employees and contractors will be authorized to provide On-Site Services (such authorized individuals, the "Designated Personnel"). In the event that Contractor wishes to have additional or different employees or contractors provide On-Site Services following the Effective Date, Contractor must obtain Company's prior written approval, in each instance. Any such additional or different employee or contractor that is approved by Company pursuant to the foregoing sentence will be deemed a "Designated Personnel" under this Agreement. Only Designated Personnel are eligible to provide On-Site Services including, without limitation, accessing or using any Company Materials as defined below). Prior to enabling any access to Company Materials by a Designated Personnel, Contractor will ensure that each Designated Personnel: (a) has entered into a binding agreement that ensures the confidentiality of Company's Confidential Information to at least the same degree as does this Agreement; and (b) complies with the terms of this Agreement. In addition to, and without limiting, the above requirements under this Section 1.9, if requested by Company, Contractor will ensure that any contractor approved by Company as a Designated Personnel executes a separate confidentiality agreement with Company based on a form supplied by Company. Contractor will remain fully responsible for the performance of its obligations or exercise of its rights hereunder, and will be liable for its Designated Personnel's breach of this Agreement. Company reserves the right, in its sole discretion, to terminate Contractor's and its Designated Personnel's access to or use of Company materials at any time and for any reason. Any security clearance items or Company Materials provided to Contractor or its Designated Personnel pursuant to this Section 1.8 shall promptly be returned to Company after use of such required items is no longer needed, but no later than the end of the Term of this Agreement. Except where prohibited by law, should Contractor learn information after assigning an individual to provide On-Site Services or requiring access to the Company Materials that Contractor, acting reasonably, considers would adversely affect such Designated Personnel's suitability for performance of the On-Site Services, Contractor will promptly (i) advise Company and remove the individual immediately from performing On-Site Services, and (ii) provide a replacement that meets Company's requirements described in Section 1.8 and Section 1.9.

1.9.3 At Company’s request, and subject to applicable law, Contractor will provide Company with the right to interview any individual who will be performing On-Site Services, provided however that such individual may be

accompanied by a Contractor representative or attorney at such interview. Contractor will promptly notify Company in writing if Contractor terminates the employment or services engagement of any individual performing On-Site Services including, if permitted by law, the reason for such termination. Notwithstanding anything in this Agreement to the contrary, Company has the sole right and discretion to control access to its facilities and Confidential Information. At any time and for any reason in Company's sole discretion, Company may require Contractor to remove an individual performing On-Site Services from Company's service account, and Contractor will promptly provide a replacement that meets Company's requirements described in Section 1.8 and Section 1.9.

2. Expenses and Invoicing and Payment Terms. Company will reimburse Contractor for any reasonable, pre-approved (in writing) expenses incurred in connection with the Services, without mark-up ("Expenses"). Contractor will invoice Company (via email to [CONTACT REMOVED]) for the Fees and any

Source page 6

Expenses as set forth in the applicable SOW. Invoices must enumerate Expenses actually incurred and be accompanied by documentation such as receipts, vouchers and invoices that are reasonably necessary to verify the amount, date and nature of each Expense. Company will pay all undisputed invoiced amounts within 45 days after receipt of each such invoice. On or by the Effective Date, Contractor will provide Company with a duly executed IRS Form W-8BEN. Company will not withhold any taxes from the compensation it pays Contractor, except as otherwise required by law.

3. Confidentiality and Information Security.

3.1 Definition. "Confidential Information" means all information disclosed (whether in oral, written, or other tangible or intangible form) by Company to Contractor (or otherwise learned by Contractor) concerning or related to this Agreement, Company and/or the Services (whether before, on or after the Effective Date) which Contractor knows or should know, given the facts and circumstances surrounding the disclosure of the information, is confidential information of Company. Confidential Information includes, but is not limited to, the Work Product (as defined below), Specifications (including any modifications or improvements to the Specifications that are developed by Contractor), the Company Materials (as defined above), trade secrets, know-how, business plans, intellectual property, strategies and other similar information.

3.2 Obligations. Contractor will maintain in confidence the Confidential Information during the term of this Agreement and thereafter, will not disclose Confidential Information to any third parties other than Permitted Disclosees (as defined below) without Company's prior written consent, and will not use such Confidential Information except as expressly permitted in this Agreement. Contractor will use the same degree of care in protecting the Confidential Information as Contractor uses to protect its own confidential and proprietary information from unauthorized use or disclosure, but in no event less than reasonable care. Contractor will use Confidential Information solely for the purpose of carrying out Contractor's obligations under this Agreement. In addition, Contractor will not reproduce Confidential Information in any form except as required to accomplish Contractor's obligations under this Agreement and will only disclose Confidential Information to its Affiliates, and its and its Affiliates' directors, officers, employees and/or contractors who (a) have a need to know such Confidential Information in order for Contractor to perform its duties under this Agreement, and (b) are bound by confidentiality obligations no less restrictive than the non-disclosure obligations contained in this Section 3 prior to receiving any Confidential Information ("Permitted Disclosees"). Contractor will be responsible for breaches of this Section 3 by its Permitted Disclosees. Notwithstanding the foregoing, the Company may disclose this Agreement and any Confidential Information contained herein to actual or potential investors or purchasers, including such parties' legal and financial representatives, in connection with any Company financing, merger, or acquisition activities and the standard legal and financial due diligence conducted therewith; provided that, such investors or purchasers (and their legal and financial representatives) are bound by confidentiality obligations (which may include professional standards of conduct) no less restrictive than the non-disclosure obligations contained in this Section 3.

3.3 Exceptions. Confidential Information will not include information that: (a) is in or enters the public domain without breach of this Agreement through no fault of Contractor or third party wrongdoing; (b) Contractor can reasonably demonstrate was in its possession prior to first receiving it from Company; (c) Contractor can demonstrate was developed by Contractor independently, and without use of or reference to, the Confidential

Information; or (d) Contractor receives from a third party without restriction on disclosure and without breach of a nondisclosure obligation. In addition, Contractor may disclose Confidential Information that is required to be disclosed by law or by a subpoena or order issued by a court of competent jurisdiction

Source page 7

("Order") but solely on the conditions that Contractor: (i) gives Company written notice of the Order within 48 hours after receiving it (if legally permitted); and (ii) cooperates fully with Company before disclosure to provide Company with the opportunity to interpose any objections it may have to the disclosure of the information required by the Order and seek a protective order or other appropriate relief.

3.4 Remedies. Contractor acknowledges that each obligation in this Section 3 is necessary and reasonable in order to protect the Confidential Information, and that monetary damages would be inadequate to compensate Company for any breach of this Section

3. Accordingly, Contractor acknowledges and agrees that: (a) any such violation or threatened violation will cause irreparable injury to Company; and (b) in addition to any other remedies that may be available to Company at law, in equity or otherwise, Company will be entitled to seek injunctive relief against any threatened breach of this Section 3 or the continuation of any such breach, from any court of competent jurisdiction, without being required to show any actual damage or irreparable harm, prove the inadequacy of its legal remedies, or post any bond or other security.

3.5 Information Security. Contractor will establish, and at all times maintain, commercially reasonable administrative, technical and physical security policies and procedures commensurate with customary industry practices for the protection of Company's Confidential Information (collectively, the "Information Security Measures"). The Information Security Measures will be designed to (a) ensure the security and confidentiality of Company's Confidential Information in possession of Contractor, including such Company's Confidential Information maintained by Contractor on its systems as well as Company's Confidential Information in the possession of or under the control of Contractor, (b) identify potential threats or hazards to the security or integrity of such Confidential Information, and (c) protect against anticipated threats or hazards, and protect against unauthorized access to or use of Company's Confidential Information.

4. Work Product.

4.1 Assignment. Contractor will promptly furnish and disclose to Company all Deliverables, materials, ideas, information and all other works discovered, prepared, used or developed by Contractor in the course of or resulting from the performance of the Services (collectively, the "Work Product"). Other than Contractor IP, all right, title and interest in and to the Work Product vests in Company, and is deemed to be a "work made for hire" (as the term is defined in the United States Copyright Act), and to the extent it may not be considered a "work made for hire," Contractor hereby assigns to Company, for no further consideration, all right, title and interest in and to the Work Product together with any and all patents and inventions (whether or not patentable), copyrights, Moral Rights (as defined below), trademarks, trade secrets and any other form of intellectual property rights recognized in any jurisdiction, including applications and registrations for any of the foregoing ("Intellectual Property Rights") embodied in or related to such Work Product. Subject to Section 4.4, if the Work Product includes items developed or otherwise obtained by Contractor prior to the Effective Date ("Contractor IP"), or if Contractor IP is necessary in order for Company to fully exploit its rights in the Work Product, Contractor grants Company and its Affiliates, for no further consideration, an unrestricted, royalty-free, perpetual, irrevocable license to make, have made, use, market, import, distribute, copy, modify, prepare derivative works, perform, display, disclose, sublicense and otherwise exploit such Contractor IP. Contractor irrevocably waives all rights under all laws (of the United States and all other countries) now existing or hereafter permitted, with respect to any and all purposes for which the Work Product may be used, and Contractor irrevocably waives, and agrees not to assert against Company or its Affiliates, customers, or licensees, to the fullest extent permissible pursuant to applicable laws, all Moral Rights in and to any and all Work Product. For the purpose of this Agreement, "Moral Rights" means any right to claim authorship to or to

Source page 8

object to any distortion, mutilation or other modification or other derogatory action in relation to a work, whether or not such action would be prejudicial to the author's reputation, and any similar right, existing under common or statutory law of any country in the world or under any treaty, regardless of whether or not such right is denominated or generally referred to as a "moral right."

4.2 Further Assurances. At no additional charge, Contractor will execute all papers (including assignments) and do all things required in order to evidence, perfect, obtain, protect, defend, convey and enforce the rights of Company in the Work Product. Contractor irrevocably designates and appoints Company and its duly authorized officers and agents as Contractor's agent and attorney in fact, to execute documents or take any lawfully permitted action to evidence, perfect, obtain, protect, defend, convey and enforce the rights of Company in the Work Product that Contractor is unable or unwilling to perform. To the extent any of the rights, title and interest in and to the Work Product cannot be assigned by Contractor to Company, Contractor grants Company, for no further consideration, an exclusive (even with respect to Contractor), unrestricted, royalty-free, perpetual, irrevocable license to make, have made, use, market, import, distribute, copy, modify, prepare derivative works, perform, display, disclose, sublicense and otherwise exploit the Work Product (excluding, the Contractor IP). Further, to the extent any of the rights, title and interest in and to the Work Product cannot be licensed by Contractor to Company, Contractor hereby irrevocably waives and agrees never to assert such non-licensable rights, title and interest against Company or any of Company's successors in interest.

4.3 Company Grant. During the term of this Agreement, Company grants Contractor a non- exclusive, non-sublicenseable, non-transferable, revocable and limited license to use any Company Materials solely to perform the Services. Subject solely to the foregoing, as between the parties, Company owns all right, title and interest in and to the Company Materials, including all Intellectual Property Rights in and related to such Company Materials. Unless Contractor receives Company's prior written approval in each instance, Contractor will not (directly or indirectly): (a) modify, adapt, alter, or create any derivative works of the Company Materials; (b) work around, interfere with, exceed or circumvent any technical limitations in the Company Materials; (c) reverse engineer, decompile, translate, disassemble, or otherwise attempt to derive the source code of the Company Materials; (d) release or disclose the results of Contractor's use, development, or evaluation of the Company Materials; (e), release or disclose the results of any benchmark testing of the Company Materials; (f) introduce into the Company Materials, any viruses, trojan horses, malware, spyware, adware or other disruptive software, or any software code, which is designed to disrupt, damage, or perform unauthorized actions on a computer system; or (g) remove or alter any proprietary notices or labels on or in the Company Materials. Contractor will: (i) protect hardware included in Company Materials from any damage, loss or theft, or unauthorized access or use; (ii) return hardware to Company immediately upon Company's request; (iii) not modify or remove any proprietary markings or notices contained on or within the hardware; and (iv) review and comply with any warnings or instructions provided by Company that are applicable to use of the hardware, including as to health and safety. Contractor hereby acknowledges that the Company Materials provided to Contractor or its Designated Personnel may be designated as alpha, beta, development, pre-release, untested, or not fully tested versions ("Alpha State"). The Company Materials may experience delays or failures of functionality, may be incomplete and may contain errors, defects, bugs or other inaccuracies that could cause failures, corruption and/or loss of data or information. Contractor acknowledges and agrees that (i) to the extent permitted by applicable law, all use of the Company Materials is at Contractor's risk; (ii) that the Company Materials may not be safety tested and/or may not have passed any safety tests performed on the Company Materials (or any third parties on Company's behalf); (iii) that the Company Materials may not comply with, and may be provided to Contractor in an Alpha State in accordance

Source page 9

with exceptions to, the regulations and standards set forth by the Federal Communications Commissions or other government agencies; (iv) that the use of the Company Materials in connection with the Services is experimental in nature; and (v) to voluntarily assume all risks and dangers associated with use of the Company Materials in an Alpha State in an experimental environment. THE COMPANY MATERIALS ARE PROVIDED “AS IS,” WITH ALL FAULTS, AND WITHOUT WARRANTY OF ANY KIND. COMPANY DISCLAIMS ALL WARRANTIES, EXPRESS, STATUTORY OR IMPLIED RELATED TO THE COMPANY MATERIALS, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. CONTRACTOR ASSUMES ALL RISK ASSOCIATED WITH ITS ACCESS AND USE OF ANY OF THE COMPANY MATERIALS.

4.4 Third Party Technology. Contractor will specify in the applicable SOW all (a) Contractor IP, and (b) third party software, materials, work product or other third party technology (collectively, “Third-Party Technology”), included in or otherwise necessary for Company’s use of the Deliverables. Contractor will not use any such Contractor IP or Third Party Technology in any Deliverables unless Company agrees in writing (email acceptable) to such use. Company shall also have the right, but not the obligation, to review any associated licensing terms and conditions for such Third Party Technology prior to approving the same. If Company wishes to purchase Third Party Technology required in connection with its receipt of Services via Contractor as its reseller, such costs will be deemed Expenses (as defined below) under this Agreement. Contractor may issue Company a separate quotation for such Third Party Technology (provided that in the event any terms and conditions of such quotation conflict with the terms and conditions of this Agreement, this Agreement will govern). Unless Company has agreed in writing to enter into any associated licensing terms and conditions for approved Third Party Materials directly with the applicable vendor, Contractor must secure for Company’s benefit all necessary licenses, rights, clearances, and permissions to use the Third Party Materials for all purposes contemplated by this Agreement.

5. Representations and Warranties.

5.1 General Representations and Warranties. Contractor represents and warrants that (a) Contractor’s execution and delivery of this Agreement and Contractor’s performance of Contractor’s obligations under this Agreement will not result in Contractor’s breach of or default under any agreement or arrangement by which Contractor is bound, and (b) this Agreement is valid, binding and enforceable against Contractor in accordance with its terms. Further, Contractor represents and warrants that (i) the person signing this Agreement on Contractor’s behalf has been duly authorized and empowered to enter into this Agreement, (ii) Contractor has full corporate power and authority to execute, deliver and perform its obligations under this Agreement, and (iii) Contractor is validly existing and in good standing under the laws of the place of its establishment or incorporation.

5.2 Specific Representations and Warranties. Contractor represents and warrants that:

5.2.1 Original Deliverables. Except as set forth below, the Work Product is the original work of Contractor, and Contractor has not assigned such materials or Intellectual Property Rights or other rights therein to any third party. If Contractor used Representatives to perform the Services, then the Work Product is the original work of Representatives who have entered into valid invention assignment agreements with Contractor providing that, for all Representatives who are employees, all such employees’ work product constitutes work made for hire, and, to the extent ownership does not vest originally in Contractor by operation of law as work made for hire, such Representatives irrevocably assign to Contractor all of their right, title, and interest in and to all the Work Product and all Intellectual Property Rights embodied in or related to

Source page 10

such Work Product, and waive any and all Moral Rights. Notwithstanding the foregoing, if Company has approved the use of any Third Party Technology in the Work Product, Contractor has secured or shall secure for Company’s benefit all necessary licenses, rights, clearances, and permissions to use the Third Party Technology for any and all purposes, and in any and all formats and media, contemplated under, or reasonably inferred from, the applicable SOW, or otherwise required by Company (as identified to Contractor in writing).

5.2.2 Noninfringement. The Work Product does not and will not infringe, violate or misappropriate any Intellectual Property Rights of any third party.

5.2.3 No Harmful Code. The Work Product does not and will not contain any Harmful Code (as defined below), and Contractor will implement customary procedures (based on standard industry practices) designed to ensure, prior to delivery to Company, that each Deliverable and the media upon which it is to be delivered (if applicable) contains no Harmful Code. For the purpose of this Agreement, “Harmful Code” means any virus, Trojan horse, time bomb, back door, drop-dead device, tracking feature, Easter egg or other programming code not necessary to implement the Specifications, or that is designed to access, interrupt or otherwise interfere with the normal functioning of the Deliverable or Company’s or an end-user’s equipment, programs or data.

5.2.4 Third Party Technology. Contractor has (i) disclosed to Company, and obtained Company’s approval for, all Third Party Technology included in or otherwise necessary for Company’s use of the Deliverables, and (ii) not used any Third Party Technology that is subject to an Excluded License. “Excluded License” means any license (a) that would restrict the ability of Company to protect its proprietary interests in the Work Products or Company Materials, including protecting its Intellectual Property Rights therein, (b) requires the disclosure or distribution in source code form of any software subject to the Excluded License or any software used, based on, or distributed in connection with software subject to the Excluded License, (c) requires the licensing of any software subject to the Excluded License or any software used, based on, or distributed in connection with software subject to the Excluded License for the purpose of making derivative works, (d) imposes any restriction on the consideration to be charged for the distribution of any software subject to the Excluded License or any software used, based on, or distributed in connection with software subject to the Excluded License, or (e) creates, or purports to create, obligations for Company with respect to any Intellectual Property Rights or grants, or purports to grant, to any third party, any rights or immunities under any Company Intellectual Property Rights. Accordingly, Excluded Licenses include, but are not limited to, licenses incorporating copyleft requirements, such as, for example, any version of the GNU General Public License, GNU Lesser General Public License, SleepyCat License, or Mozilla Public License. For the avoidance of doubt, Company’s approval of a Third Party Technology and/or its licensing terms and conditions pursuant to Section 4.4 shall not relieve Contractor of any liability arising from a breach of this Section 5.2.4.

5.2.5 Source Code. All source code contained in the Work Product: (a) will be in English and reasonably documented and internally annotated such that a trained programmer will be able to reasonably understand such source code; (b) will not involve any proprietary languages or programming components that a trained programmer could not be reasonably expected to understand; (c) will be capable of being interpreted and compiled, as applicable, into an executable form for use in the Work Product as it is designed to be used.

5.2.6 Performance. Contractor will perform the Services hereunder in a timely and good and workmanlike manner, consistent with the highest standards of performance applicable in its industry.

Source page 11

5.2.7 Right to Make Full Grant. Contractor has all requisite ownership, rights, and licenses to perform its obligations under this Agreement fully as contemplated under this Agreement and to transfer to Company all rights with respect to the Work Product purported to be transferred under this Agreement by Contractor, free and clear of any and all liens, claims, and encumbrances, and to grant the licenses purported to be granted under this Agreement free and clear of any claims, including in each case as to any of Representatives who have provided, are providing, or will provide Services, or any current or past client or customer to whom Contractor has provided design or development services.

6. Indemnification. Contractor, at Contractor’s sole expense, will defend Company and its directors, officers, employees, contractors, Affiliates and agents (collectively, “Indemnitees”) harmless from and against any and all actual or threatened suits, actions, proceedings (at law or in equity), and claims (groundless or otherwise) (“Claims”), and indemnify the Indemnitees for any and all damages, payments, deficiencies, fines, judgments, settlements, liabilities, losses, costs and expenses (including, but not limited to, reasonable attorneys' fees, expert witnesses’ costs and fees, costs, penalties, interest and disbursements) arising from or relating to any Claim (including third-party claims) against any Indemnitees, whether successful or not, caused by, arising out of or resulting from: (a) any breach or alleged breach of this Agreement by Contractor (including, but not limited to, any breach or alleged breach of any of Contractor’s representations or warranties), (b) any negligent act or

willful misconduct by Contractor, (c) Contractor's performance of the Services, (d) any Representative claims (including, but not limited to, employment, workers compensation or recovery for on-the-job injury claims), (e) any failure to comply with applicable laws, (f) any bodily injury (including death) or damage to any property caused by any negligent or willful act or omission by Contractor (or any party acting on Contractor's behalf), (g) the failure of Contractor to convey information required to be conveyed pursuant to Section 1.8 or 1.9 or otherwise relevant information; or (h) any breach or alleged breach of the Security Requirements.

7. Term.

7.1 Term and Termination. Unless terminated as set forth below, the term of this Agreement will commence on the Effective Date and continue until the later of 1 year or the completion of the performance of the Services. Either party may terminate this Agreement or an SOW, for cause, if the other party breaches the Agreement or SOW and does not remedy such failure within 30 days after receipt of written notice of such breach. In addition, Company may terminate this Agreement or an SOW, without cause, by providing Contractor with at least 10 days' prior written notice.

7.2 Effect of Termination. Upon any termination of this Agreement: (a) Contractor will promptly provide Company with all Confidential Information then in Contractor's possession or destroy all copies of the Confidential Information, at Company's sole discretion and direction, (b) Contractor will immediately provide Company with all Work Product, (c) Contractor, upon Company's request, will reasonably assist Company in transitioning the Services, (d) Company will pay Contractor for any Services performed before the date of termination, and (e) each party's obligations under this Agreement will immediately cease. Notwithstanding any terms to the contrary in this Agreement, Sections 3, 4, 5, 6, 7.2, 8 and Exhibits B and C will survive any termination of this Agreement. EXCEPT AS EXPRESSLY SET FORTH HEREIN, IN NO EVENT WILL COMPANY BE LIABLE TO CONTRACTOR OR ANY THIRD PARTY FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, EXEMPLARY, PUNITIVE OR CONSEQUENTIAL DAMAGES OF ANY KIND ARISING OUT OF THIS AGREEMENT, INCLUDING ANY TERMINATION OF THIS AGREEMENT PURSUANT TO SECTION 8.1.

Source page 12

8. General Provisions.

8.1 Insurance. During the term of this Agreement, Contractor must maintain insurance on its respective businesses and properties, at all times (including, but not limited to, insurance for insurable force majeure events, fire and other hazards), insurance against liability on account of damage to persons, property, or financial loss, and insurance under all applicable Worker's Compensation and Employer's Liability laws in the state or nation where the Services are performed.

8.2 Entire Agreement. This Agreement, including all SOWs and exhibits to this Agreement, all of which are incorporated herein by reference, sets forth the entire agreement and understanding of the parties relating to the subject matter hereof and supersedes all prior or contemporaneous agreements, proposals, negotiations, conversations, discussions and understandings, written or oral, with respect to such subject matter and all past dealing or industry custom.

8.3 Independent Contractors. Contractor is and will remain solely and exclusively an independent contractor of Company. Nothing in this Agreement will be construed to create a partnership, joint venture or agency relationship between the parties, and in no event will either party be, claim to be, or be deemed to be, an employee, agent or partner of the other party by reason of or with respect to this Agreement or any Services. Contractor acknowledges that, as an independent contractor, Contractor is not eligible to participate in any benefits program or employee welfare benefit plan Company offers its employees (if any). Contractor will comply with all laws, including, but not limited to, all laws governing payment of income taxes, self-employment taxes and service taxes, and all other federal, state, local and foreign taxes of any nature imposed with respect to Contractor's obligations under this Agreement.

8.4 Publicity. Contractor will not, without the prior written consent of Company in each instance, use the name, service marks, or trademarks of Company or its Affiliates for any purpose, including any advertising, publicity release, or representative client list.

8.5 Governing Law and Venue. This Agreement will be governed by and construed in accordance with the laws of the State of Florida, without resort to its conflict of law provisions. The state or federal court in Broward County, Florida will be the jurisdiction in which any suits should be filed if they relate to this Agreement. If a party initiates any proceeding regarding this Agreement, the prevailing party to such proceeding is entitled to reasonable attorneys' fees and costs for claims arising out of this Agreement.

8.6 Assignment and Limitations. Neither this Agreement nor any right or duty under this Agreement may be transferred, assigned or delegated by Contractor, by operation of law or otherwise, without the prior written consent of Company, and any attempted transfer, assignment or delegation without such consent will be void and without effect. Company may freely transfer, assign or delegate this Agreement or its rights and duties under this Agreement. Subject to the foregoing, this Agreement will be binding upon, will inure to the benefit of the parties and their respective representatives, heirs, administrators, successors and permitted assigns.

8.7 Export Control Compliance. Contractor will fully comply with all applicable U.S. export control laws regarding the export of items, software or technology, including ensuring that (a) no equipment, technical data or software received from Company is exported or re-exported to any country, person or entity in violation of any U.S. sanctions or export controls (including to sanctioned or restricted entities); and/or (b) that anything received from Company is not used or re-exported for a prohibited use under U.S. export control

Source page 13

laws. Further, Contractor represents and warrants that it is not located in a country that is subject to U.S. Government sanctions or that has been designated by the U.S. Government as a "terrorist supporting" country and that Contractor has not been identified as a "Specially Designated National" by the Office of Foreign Assets Control, has not been placed on the U.S. Commerce Department's Denied Persons List, and has not been listed on any other U.S. Government or other applicable sanctions lists.

8.8 Amendments and Waivers. No modification, addition or deletion, or waiver of any rights under this Agreement will be binding on a party unless made in a non-preprinted agreement clearly understood by the parties to be a modification or waiver, and signed by a duly authorized representative of each party. No failure or delay (in whole or in part) on the part of a party to exercise any right or remedy hereunder will operate as a waiver thereof or affect any other right or remedy. All rights and remedies hereunder are cumulative and are not exclusive of any other rights or remedies provided hereunder or by law. The waiver of one breach or default or any delay in exercising any rights will not constitute a waiver of any subsequent breach or default.

8.9 Notices. Any notice or communication required or permitted to be given hereunder must be in writing signed or authorized by the party giving notice, and may be delivered by hand, deposited with an overnight courier, sent by confirmed email or mailed by registered or certified mail, return receipt requested, postage prepaid, in each case to the address of the receiving party as identified on this Agreement or at such other address as may hereafter be furnished in writing by either party to the other party. Such notice will be deemed to have been given as of the date it is delivered. 8.10 Severability. If any provision of this Agreement is invalid, illegal, or incapable of being enforced by any rule of law or public policy, all other provisions of this Agreement will nonetheless remain in full force and effect so long as the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner adverse to any party. Upon such determination that any provision is invalid, illegal or incapable of being enforced, the parties will negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible in an acceptable manner to the end that the transactions contemplated hereby are fulfilled. 8.11 Counterparts. This Agreement may be executed by the parties by exchange of signature pages by mail, facsimile, email or other electronic means (if email or electronically, signatures in Adobe PDF, via electronic signature or similar format), in two or more counterparts, each of which will be deemed an original and all of which will together constitute the same instrument. [Signature Page to Follow.]

Source page 14

[SIGNATURE PAGE REMOVED: signatures, names, titles, dates, addresses and approval markings.]

Source page 15

EXHIBIT A-1 STATEMENT OF WORK #1 This Statement of Work #1 (“SOW #1”) is made as of the date of the last signature below (“SOW #1 Effective Date”) pursuant to the Services Agreement (the “Agreement”) entered into as the Effective Date by and between Firma A (“Company”) and Service Provider (“Contractor”). This SOW #1 sets forth certain Services and Deliverables that will be provided by Contractor pursuant to the Agreement and the anticipated delivery dates and Fees associated with the Deliverables. Capitalized terms used but not defined in this SOW #1 will have the meanings accorded to them in the Agreement. Description of Services and Deliverables [PROJECT SPECIFICATIONS AND IDENTIFYING TECHNOLOGY DETAILS REMOVED.] The Services provided under this SOW #1 shall be deemed On-Site Services under the Agreement, and any materials provided by Company to Contractor for provision of the Services shall be deemed Company Materials under the Agreement and may only be used while performing On-Site Services. Schedule/Delivery Dates The Deliverables hereunder shall be provided by Contractor with four (4) weeks of the SOW Effective Date or as otherwise mutually agreed by the parties in writing. Term The term of this SOW #1 will commence on the SOW #1 Effective Date and will terminate upon the Contractor completion of all Services and delivery of all Deliverables described hereunder, to be determined in Company’s sole and reasonable discretion.

Source page 16

Fees and Invoicing Terms The Fees for the performance of Services and delivery of Deliverables under this SOW #1 shall be [AMOUNT REMOVED]. Contractor shall invoice the full payment (as set forth in Section 2 of the Agreement) upon delivery and acceptance of the Deliverables. Company shall make payment as set forth in Section 2 of the Agr eement. Contractor will bill Company for out -of-pocket Expenses that are pre -approved by Customer , where such pre - approved Expenses may not exceed [AMOUNT REMOVED] . Any travel or lodging must be booked by Company’s travel agent. In no event will the total amount of Fees and Expenses paid by Company to Contractor under this SOW #1 exceed [AMOUNT REMOVED] without a Change Order to this SOW #1.

[SIGNATURE BLOCK REMOVED.]

Source page 17

Exhibit B - On-Site Services Terms A. On-Site Services. Contractor will provide any On-Site Services (as defined in Section 1.8 of the Agreement) in accordance with the On-Site Services Terms attached hereto as Exhibit B, including the security requirements that will apply to the On-Site Services (the “Security Requirements”) attached hereto as Attachment 1, and the Code of Conduct attached hereto as Attachment 2. B. Participation. Firma A reserves the right, at any time and in its sole discretion, to: (a) revoke the ability of Contractor or any of its Designated Personnel to perform any On-Site Services; and (b) remove Contractor or any Designated Personnel from Firma A’s facilities. C. Data; Confidentiality. To the extent that Firma A provides Contractor and/or its Designated Personnel with access to and the opportunity to use Company Materials during any On-Site Services, Contractor and its Designated Personnel acknowledge and agree that they do not have any reasonable expectation of privacy in connection with any access to Company Materials. Firma A may access, collect information from, or otherwise monitor any Company Materials used by Designated Personnel. Contractor acknowledges and agrees that Firma A has the right to collect data regarding Contractor’s or its Designated Personnel’s use of any Company Materials provided for Contractor’s use during any On-Site Services, both directly and indirectly using automatic means. Such data may include, but limited to, IP address, telemetry information, sensor data, or other usage information that is otherwise collected, generated, processed, or transmitted by or through the Company Materials (collectively, “Usage Data”). Firma A will own all right, title and interest in any such Usage Data. For the avoidance of doubt, Usage Data does not include names, addresses, or any other similar personally identifiable information (“PII”). Should Firma A collect or use any PII from Contractor’s Designated Personnel, Firma A shall do so in accordance with its Privacy Policy. Contractor further acknowledges and agrees that Firma A is not responsible for maintaining the confidentiality of any Contractor information that may be disclosed by its Designated Personnel to any third parties during On-Site Services. D. Code of Conduct and Onsite Policies. Contractor will ensure that all Designated Personnel (a) execute and comply with the Code of Conduct and any other applicable policies and procedures that Firma A may provide, including any security requirements applicable to On-Site Services, and (b) agree to any applicable terms and conditions that Firma A provides prior to attendance at a Firma A facility. E. Risk of Loss or Damage. Firma A has invested significant time, money and resources in the development of the Company Materials, as well as in Firma A’s effort to maintain the secrecy of the Company Materials prior to their commercial release. As such, Contractor hereby assumes certain risk of loss or damage to the Contractor Materials, as specified in this Section E, once Contractor has been granted access to the Company Materials as a part of any On-Site Services. Contractor will notify Firma A immediately if the Company Materials are lost, stolen, damaged or tampered with and, in any such event, will be liable to Firma A as follows: (i) If the Company Materials are stolen or tampered with as a result of Contractor’s intentional acts, gross negligence, or willful misconduct, Contractor will be responsible for all loss, damage or other harm that Firma A can reasonably demonstrate it incurred as a result of such theft or tampering, including (a) direct damages, (b) indirect, incidental, collateral, consequential or special damages or lost profits (“Consequential

Source page 18

Damages”), and (c) reasonable attorney’s fees, costs and disbursements. Contractor agrees that Firma A will incur such damages if the Company Materials are stolen or tampered with and that Firma A’s recovery of any such damages (including Consequential Damages) is reasonable under such circumstances. Contractor will not assert that any such damages (including Consequential Damages) are disclaimed or unrecoverable due to their nature. (ii) If any [PROTOTYPE TYPE] prototypes or other similar hardware provided as Company Materials are intentionally damaged by Contractor (“Fault Damage Event”) Contractor will promptly pay Firma A [AMOUNT REMOVED] (iii) If any [PROTOTYPE TYPE] prototypes or other similar hardware provided as Company Materials are damaged as a result of Contractor’s negligence (“Non-Fault Damage Event”), Contractor will promptly pay Firma A [AMOUNT REMOVED] The parties acknowledge that the liquidated damages amounts described in clause (ii) and (iii) above are good faith estimates of the damages Firma A may incur as a result of a Fault Damage Event or Non-Fault Damage Event, respectively, and are not intended to be a penalty. These amounts are intended to compensate Firma A solely for damage to the Company Materials, and are in addition to any other remedies to which Firma A may be entitled to for other reasons (including in connection with Contractor’s breach of its obligations under this Agreement). This Section E will govern over any conflicting limitation of liability or disclaimer of damages applicable to Contractor’s use of the Company Materials set forth in any other agreement between the parties. By signing below, Contractor agrees (i) to be legally bound by all of the terms and conditions set forth in this Exhibit B (including Attachments 1 and 2 hereto); and (ii) that Contractor’s failure to adhere to this Exhibit B will constitute a material breach of the Agreement. [SIGNATURE BLOCK REMOVED.]

Source page 19

Attachment

1 Security Requirements The following Security Requirements apply to (a) any Company Materials to which Contractor is provided with access as part of On-Site Services, and (b) other Confidential Information related to such Company Materials.

1. Supervision. Contractor’s access to and use of the Company Materials must be supervised by a Firma A employee, or Firma A security guard, at all times. Contractor will remain within the physical location inside the Firma A facilities identified by Firma A for the On-Site Services at all times, unless escorted by a Firma A employee or Firma A security guard (the “Services Space”).

2. Network Access. To the extent that Contractor is authorized to connect to Firma A’s network or otherwise gain access to Firma A’s computer systems or software for purposes of performing its obligations hereunder, Contractor shall (a) use such access solely for the purpose of On-Site Services; and (b) only access equipment or software that is provided by Firma A for Contractor’s use during the On-Site Services. Contractor will not access or attempt to access any other Firma A or third-party systems, databases, equipment or software.

3. No Removal; No Portable Media. The Company Materials may not be removed from the Services Space by Contractor (or any Designated Personnel), even temporarily, under any circumstances. Contractor shall not bring or use any portable media during the Onsite Services and under no circumstances shall Contractor transfer or store any Company Materials on any portable media.

4. Codenames. Contractor will require its Designated Personnel to create a project codename to be used by all Designated Personnel in reference to Firma A or any Company Materials, including during discussions regarding attendance of the On-Site Services. The project codename must be used by Contractor and the Designated Personnel at all times, both in discussions and in any written references to either Firma A or any Company Materials.

5. No Photography. No photographs, videos or other recorded images may be taken or made of, or shot or filmed through, any of the Company Materials for any reason without the prior written approval of Firma A. In the event that photography or filming through any of the Company Materials is permitted by Firma A, all such photography or videos must be only (i) captured on a device issued to Contractor by Firma A, (ii) shared with Firma A or third parties expressly approved in writing by Firma A, and (iii) shared using a secure file sharing service approved by Firma A.

6. Restrictions on Copying. No copies of Company Materials may be made for any reason.

7. No Disclosures. Designated Personnel may not discuss, disclose or otherwise expose the Company Materials to any other individuals or third parties including, without limitation, vendors, suppliers, visitors, family members, friends, acquaintances or personnel of Contractor who are not Designated Personnel (if any).

Source page 20

8. No Modifications. Markings on or in Firma A Confidential Information or Company Materials indicating its proprietary or confidential nature may not be removed or obscured. Any security features, tracking features, and other security measures in or accompanying the Company Materials may not be modified, removed or disabled.

9. Compliance with Law. The Company Materials must be used only in accordance with applicable law. 10. Other Measures. Firma A reserves the right, from time to time, to adopt other facility security measures (including, without limitation, instituting mandatory bag or other personal searches when entering and/or exiting a facility, surrender of personal cell phones, tablets or computer devices upon entry to a facility, mandatory lock-down procedures, etc.). Contractor agrees to comply with any such other facility security measures adopted by Firma A. 11. Acknowledgement of Security Requirements. All Designated Personnel must acknowledge receipt of a copy of this Attachment 1 in writing prior to attending any On-Site Program. Contractor will provide Firma A with copies of such acknowledgements upon request. 12. Exposure. Notwithstanding Contractor’s obligation to safeguard the Company Materials, in the event that a person who is not a Designated Personnel observes or is exposed to a Designated Personnel’s use of Company Materials, or any other inquiry is made by non-Designated Personnel with regard to the Company Materials, the Designated Personnel will (a) state to the non-Designated Personnel that he or she is testing [COVER DESCRIPTION REMOVED]; and (b) promptly inform [CONTACT REMOVED] of any such observation, exposure or inquiry by non-Designated Personnel. 13. Loss. In the event that the Company Materials are, at any time, lost, misplaced or otherwise falls into the possession of non-Designated Personnel, or the occurrence of any other security breach, Contractor will immediately inform [CONTACT REMOVED]; and cooperate with Firma A in any efforts to recover the Company Materials. 14. Responsibility for Designated Personnel. Contractor will be responsible for the acts or omissions of its Designated Personnel under this Attachment 1.

Source page 21

Attachment

2 Designated Personnel Code of Conduct A. General Before you can provide On-Site Services, we ask that you carefully review all of the code of conduct terms set forth below (the “Code”). The Code constitutes a legally binding agreement between you and Firma A (“Firma A”). By signing below, you acknowledge and agree that you have read the Code and you agree to be bound by the Code and any other applicable guidelines or terms and conditions provided to you by Firma A. Failure to adhere to the Code (as well as any other guidelines, terms or instructions provided to you by Firma A) is grounds for dismissal from any Firma A Facilities. B. On-Site Services If you provide On-Site Services, the following terms will apply: Office Hours Firma A’s office is open to the public from [OFFICE HOURS REMOVED]. Unless otherwise approved by your Firma A sponsor, you may only access the Firma A facilities to which you have been invited (the “Firma A Facilities”) during those hours. Visitors Badge If you are issued a Firma A visitor identification badge (your “Badge”), you must (a) have your Badge visible on your person at all times while in attendance at the Firma A Facilities, (b) immediately report any suspected or actual loss or theft of your Badge to your Firma A sponsor, and (c) surrender your Badge to your Firma A sponsor upon the earlier of the end of the On-Site Program or Firma A’s request. Access to Facilities You may access only the parts of the Firma A Facilities expressly authorized by Firma A (the “Approved Areas”). Unless otherwise approved by your Firma A sponsor, your presence will not be authorized in any other area of the Firma A offices except for the Approved Areas. Any Company Materials that you are permitted to access may not be removed from the Approved Area, even temporarily, under any circumstances. Please be aware that Firma A is not responsible for maintaining the confidentiality of attendees or their projects or materials. Multiple individuals or groups may be at the Firma A Facilities at any time, and you are solely responsible for maintaining any desired confidentiality. Security You hereby acknowledge that comply with Firma A’s Security Requirements in connection with such On-Site Services. You must acknowledge receipt of the Security Requirements in writing prior to attending such On-Site Program, and you

agree to provide Firma A with copies of such acknowledgement upon request. General Policies You may not engage in any loud, rude or otherwise disruptive behavior. It will be business as usual at the Firma A Facilities, so you must be respectful of our employees and visitors at all times. While you are on

Source page 22

the Firma A Facilities, you must comply with any and all policies and procedures of Firma A, as may be modified from time to time by Firma A, including with respect to Internet access, security requirements, and safety precautions. Confidential Information; Social Media Any confidential information disclosed by Firma A or any feedback or suggestions you provide to Firma A (“Firma A Confidential Information”) in connection with your attendance at the On-Site Program will be governed by the Agreement. You agree not to (a) use any Firma A Confidential Information for any purpose other than to provide On-Site Services and learn about the capabilities of Firma A’s platform, and (b) disclose any Firma A Confidential Information to any other person without the prior written consent of Firma A. The fact that you are attending Firma A Facilities is Firma A Confidential Information and may not be disclosed. This also means that you may not disclose to any third party your attendance at a Firma A Facility, including any fact or circumstance that, by itself or together with publicly available information, would permit a third party to infer that you are or have been visiting the Firma A Facility, including through any social media activity (e.g., do not engage in any social media check-in while at the Firma A Facilities). Assumption of Risk YOU HEREBY ASSUME ALL OF THE RISKS OF PARTICIPATING IN ANY ACTIVITIES ASSOCIATED WITH PROVIDING ON-SITE SERVICES, INCLUDING ANY RISKS THAT MAY ARISE FROM YOUR USE OF ANY Firma A HARDWARE OR SOFTWARE OR THE NEGLIGENCE OR FAULT OF Firma A. YOU ARE SOLELY RESPONSIBLE FOR THE PROTECTION AND USE OF ANY MATERIALS (INCLUDING PROTOTYPES) YOU BRING TO THE Firma A FACILITIES. Liability Waiver You, on behalf of yourself and your heirs, personal representatives or assigns, hereby release, waive, discharge and covenant not to sue Firma A, its officers, employees and agents. Feedback You hereby assign to Firma A any right (including intellectual property rights), title or interest you may have in any feedback, suggestions, or comments you provide to Firma A related to the Company Materials or Firma A’s business, including recommendations for improvements and commercialization. [SIGNATURE BLOCK REMOVED.]

Source page 23

EXHIBIT C Form of Materials Receipt Reference No. Contractor Name [Entity Name] Agreement This Materials Receipt is pursuant to the Services Agreement (the “Agreement”) by and between Firma A (“Company”) and Contractor. Capitalized terms used but not defined herein shall have the meanings set forth in the Agreement. Description of Company Materials Fault Event Liquidated Damages Non-Fault Event Liquidated Damages Third-Party Materials Subject to Additional Terms Return Date Authorized Location Authorized Personnel Delivery and Return Process Additional Terms By signing below, Contractor agrees (i) to be legally bound by all of the terms and conditions set forth in this Materials Receipt; and (ii) that Contractor’s failure to adhere to this Materials Receipt will constitute a material breach of the Agreement. [SIGNATURE BLOCK REMOVED.]

Source page 24

ATTACHMENT I TO MATERIALS RECEIPT Security Requirements The following Security Requirements apply to (a) Company Materials that are equipment, devices, components or other hardware (“Equipment”) listed on the Materials Receipt to which this Attachment I is attached, (b) other Company Materials that are not Equipment that are provided along with any such Equipment, and (c) other Confidential Information related to the Company Materials.

1. Initial Inspection/Certification. Prior to providing any Company Materials for use at an Authorized Location, Company may, in its sole discretion, either (i) require Contractor to provide information to Company regarding its security measures and self-certify its compliance with these Security Requirements in a questionnaire to be provided by Company (“Self-Certification Form”), or (ii) conduct an on-site inspection to confirm that the applicable Authorized Location meets Company’s Security Requirements as set forth in this Appendix. Company will maintain in confidence all of Contractor’s responses to the Self-Certification Form. Following receipt of the Self-Certification Form or Company’s performance of the on-site inspection, Contractor will be given an opportunity to make any necessary improvements to fulfill the requirements set forth in these Security Requirements. If (and as applicable), based on Contractor’s responses to the Self-Certification Form, Company

reasonably determines that Contractor cannot comply with these Security Requirements, Company may require, in writing, that Contractor comply with alternative or additional requirements, and such additional requirements shall be deemed part of the “Security Requirements.” Unless Company approves in advance in writing to waive any specific requirements set forth in these Security Requirements, no Company Materials will be provided for use at an Authorized Location until Company has confirmed in a writing delivered to Contractor that it has approved the results of the Self-Certification Form or on-site inspection, as applicable (email is sufficient).

2. Facility Security Requirements. The Authorized Location must be protected by an alarm system and/or a full time, on-site and roving 24-hour security guard. If the Authorized Location is located in a FEMA designated hurricane zone, the Authorized Location must have hurricane impact windows covering the building. The Authorized Location must have a 24-hour building surveillance system.

3. Work Space Requirements.

3.1. Segregated Space. The development space (e.g., room, office or other controlled space) in the Authorized Location where work will be conducted using the Company Materials (the “Work Space”) must be segregated with no visible sight on the Equipment from outside of the Work Space. The Work Space must either (i) have a lockable door with an access control system that limits access to the Work Space as required in Section 3.3 below and a CCTV System (as defined below) that covers the entrance to the Work Space, or (ii) if the Work Space is not a true room (i.e., is created using temporary partitions), have a CCTV System that covers the entire Work Space.

3.2. Required Signage. “No Photography” and “Authorized Access Only” signs must to placed outside and in the Work Space.

Source page 25

3.3. Access Control System. Any access control system for the Work Space must include a badge access or keypad controlled system that ensures that only Authorized Personnel and other Approved Staff (as defined below) can use their badge to gain access to the Work Space. The access control system to the Work Space must be audit capable so that Company can review who has accessed the Work Space (including, without limitation, the name of the Authorized Personnel accessing the Work Space and the date and time of access, etc.). The access control system must store all entry records for a minimum of 6 months in the event Company wishes to audit the records. 3.4. CCTV System. The Work Space (including the Secured Storage Space) must be covered by a closed circuit video monitoring system that produces auditable video recordings (a “CCTV System”) that fulfills the criteria set forth in Section 3.1 above. The CCTV System must have 24-hour coverage and must store all video recordings for a minimum of 60 days in the event Company wishes to audit the footage. In addition, all video recordings from the CCTV System must be stored securely and separately from the location where the Equipment will be stored. For the avoidance of doubt, the CCTV System is not required to record audio.

3.5. Access by Other Approved Staff. A limited number of other Contractor staff (e.g., IT staff, janitorial and maintenance personnel, etc.) are authorized to access the Work Space and/or the Secured Storage Space as needed to perform their duties (“Approved Staff”), but are not authorized to access or use the Company Materials. Any Equipment must be secured in the Secured Storage Space/Secured Container such that the Equipment is not visible or accessible during the entire period of time in which the Approved Staff remains inside the Work Space or Secured Storage Space. In addition, Approved Staff accessing the Work Space or the Secured Storage Space must be supervised at all times by an Authorized Personnel for the entire period of time in which the Approved Staff remains inside the Work Space.

4. Equipment Storage Requirements.

4.1. Secured Storage Space; Secure Container. Contractor will provide a secure, lockable location for the storage of the Equipment in the Authorized Location (“Secured Storage Space”). The Secured Storage Space must be a separate, secured room, cabinet or safe. Without limiting any specific requirements set forth herein, Contractor will ensure that the Equipment is secured with three layers of lockable security during storage (“Three Layer Security Requirement”). In addition, if necessary to achieve the Three Layer Security Requirement, Contractor will additionally provide a secure, lockable cabinet within the Secured Storage Space

that is more than a file cabinet but less than a safe (“Secure Container”). For example, Contractor may store the Equipment within the Secure Container, within the Secured Storage Space, within the secured Authorized Location, or may store the Equipment within the Secured Storage Space, within a Work Space with an access control system, within the secured Authorized Location.

4.2. Storage Requirements and Process. The Equipment must be stored in the Secured Storage Space (and within the Secure Container, if necessary to fulfill the Three Layer Security Requirement) during periods of non-use and non-working hours. Only Authorized Personnel will have the ability to access

Source page 26

or open the Secured Storage Space. Equipment may only be taken out of the Secured Storage Space and brought into the general Work Space by Authorized Personnel. During working hours, the Authorized Personnel will not leave the Equipment unattended for a material amount of time (i.e., no more than five minutes). For example, if the Authorized Personnel leaves for a break, the Equipment must be returned to and locked within the Secured Storage Space (and within the Secure Container, if necessary to fulfill the Three Layer Security Requirements). At the end of each working day, and before leaving the Authorized Location, the Equipment will must be returned to and locked within the Secured Storage Space (and within the Secure Container, if necessary to fulfill the Three Layer Security Requirements) by the Authorized Personnel.

4.3. Transfer to the Work Space. If the Secured Storage Space is not within the Work Space, only the Authorized Personnel are permitted to transfer the Equipment from the Secured Storage Space to the Work Space. The Authorized Personnel must only transfer the Equipment from the Secured Storage Space to the Work Space either within the Secure Container or otherwise underneath a covering that prevents any other individuals from seeing the Equipment.

4.4. Access Control System. The Secured Storage Space, if located outside of a Work Space with an access control system, must use an access control system that ensures that only Authorized Personnel can access the Equipment while stored in the Secured Storage Space. Ideally, the Secured Storage Space should use a badge access system, but with Company’s prior written approval, may use a key lock or keypad instead. The access control system to the Secured Storage Space, if required, must be audit capable so that Company can review who has accessed the Secured Storage Space (including, without limitation, the name of the Authorized Personnel accessing the Secured Storage Space and the date and time of access, etc.). The access control system must store all entry records for a minimum of 6 months in the event Company wishes to audit the records. 4.5. CCTV System. The Secure Storage Space, if located outside of the Work Space, must be covered by a CCTV System at all access points into and out of the Secured Storage Space. The CCTV System must have 24-hour coverage and must store all video recordings for a minimum of 60 days in the event Company wishes to audit the footage. In addition, all video recordings from the CCTV System must be stored securely and separately from the location where the Equipment will be stored. For the avoidance of doubt, the CCTV System is not required to record audio.

4.6. Emergency Access to Secured Storage Space. If the Secured Storage Space is a separate room or closet (as opposed to a cabinet or safe), Contractor may include one or more “Approved Building Managers” as part of the Approved Staff. Any such Approved Building Managers will have limited access rights to the Secured Storage Space solely in their capacity as Contractor’s building managers. The Approved Building Managers must only access the Secured Storage Space in the event of an emergency situation where prompt access is required to mitigate an immediate harm (e.g., a water leak) and for no other reason. If an Approved Building Manager requires access to the Secured Storage Space due to an emergency situation, Contractor will use best efforts to have an Authorized Personnel accompany such individual during the entire time they are within the Secured Storage Space and will promptly notify Company’s Senior Director, Global Security (currently, [PERSON REMOVED] at [CONTACT REMOVED]) of such access and the related emergency event.

Source page 27

5. Network Security Requirements.

5.1. Contractor Systems and Networks; No Portable Media. For Company Materials that are not Equipment (e.g., software, documentation, or other tools), any such Company Materials must be installed, stored and used only on computer systems and networks owned or controlled by Contractor. Contractor shall not transfer or

store any Company Materials on any portable media.

5.2. Compliance with Documentation. Contractor must install and use any such Company Materials in accordance with the documentation and instructions provided by Company and the terms and conditions of the applicable commercial agreement between Company and Contractor (if any).

5.3. Industry-Standard Measures. Contractor must implement and maintain a current information security program that requires Contractor to adhere to industry standard technical, administrative and physical security measures to protect against unauthorized access to Contractor’s systems and network. Any PCs where software is installed must have password protection and automated lockout, and must only be accessible by Authorized Personnel.

5.4. Policy Review. Contractor will provide copies of its then-current network security policies to Company on request.

6. Other Requirements/Restrictions.

6.1. Inventory Control. All Equipment is assigned a serial number for tracking purposes. Company may require Contractor to adopt a basic (i.e., manual/written) inventory control system to track and monitor any Equipment in Contractor’s possession and control.

6.2. No Removal. Except as pre-authorized by Company in writing in each instance, the Company Materials may not be removed from the Work Space within the Authorized Location, even temporarily, under any circumstances (except pursuant to the return protocols described in the Materials Receipt to which these Security Requirements are attached).

6.3. Codenames. Contractor will require the Authorized Personnel to create a project codename to be used by all Authorized Personnel in reference to Company or any Company Materials. The project codename must be used by Contractor and the Authorized Personnel at all times, both in discussions and in any written references to either Company or any Company Materials.

6.4. No Photography. No photographs, videos or other recorded images may be taken or made of, or shot or filmed through, any of the Company Materials for any reason without the prior written approval of Company. In the event that photography or filming through any of the Company Materials is permitted by Company, all such photography or videos must be only (i) captured on a device issued to Contractor by Company, (ii) shared with Company or third parties expressly approved in writing by Company, and (iii) shared using a secure file sharing service approved by

Source page 28

Company. For the avoidance of doubt, the foregoing restrictions do not apply with respect to the CCTV System exclusively for security related purposes.

6.5. Restrictions on Copying. No copies of Company Materials that are not Equipment may be made, except for a reasonable number of copies of documentation or files to the extent reasonably necessary for Contractor to use the Company Materials for the Authorized Purpose.

6.6. No Disclosures. Authorized Personnel may not discuss, disclose or otherwise expose the Company Materials to any other individuals or third parties including, without limitation, vendors, suppliers, visitors, family members, friends, acquaintances or personnel of Contractor who are not Authorized Personnel (if any).

6.7. No Modifications. Markings on or in the Confidential Information or Equipment indicating its proprietary or confidential nature may not be removed or obscured. Any security features, tracking features, and other security measures in or accompanying the Company Materials may not be modified, removed or disabled.

6.8. Other Measures. Company reserves the right, from time to time, to require Contractor to adopt or comply with other facility security measures (including, without limitation, instituting mandatory bag or other personal searches when entering and/or exiting a facility, surrender of personal cell phones, tablets or computer devices upon entry to a facility, mandatory lock down procedures, etc.). If Company requires Contractor to comply with or adopt any such additional security measures, Company will provide written notice of such measures to Contractor. Contractor will have a period of thirty (30) days (or such other period as Company and Contractor

may agree in writing) to comply with or adopt any such other facility security measures. In the event that Contractor does not comply with or adopt such security measures, Contractor will return all Equipment to Company in accordance with the applicable Materials Receipt.

6.9. Log Review. Contractor will make access control logs and CCTV video recordings available for Company's review promptly upon request from time to time, via email or other electronic means. 6.10. Company Access. Company personnel are authorized to visit the Authorized Location (including any Work Space) from time-to-time with advanced written notice to Contractor. While visiting, Company personnel should be given open access to the Company Materials, including any logs that are requested by the Company personnel under these Security Requirements. Any such Company personnel who visit the Authorized Location shall comply with any and all reasonable and applicable security measures, procedures, and protocols that Contractor has provided to Company in writing in advance while at the Authorized Location. 6.11. Compliance with Law. The Company Materials must be used only in accordance with applicable law.

Source page 29

6.12. Acknowledgement of Security Requirements. All Authorized Personnel must acknowledge receipt of a copy of these Security Requirements in writing prior to being granted access to the Company Materials. Contractor will provide Company with copies of such acknowledgements upon request.

7. Exposure Procedures. Notwithstanding Contractor's obligation to safeguard the Company Materials, in the event that a person who is not Authorized Personnel observes or is exposed to an Authorized Personnel's use of Company Materials, or any other inquiry is made by non-Authorized Personnel with regard to the Company Materials, the Authorized Personnel will (a) state to the non-Authorized Personnel that he or she is testing [COVER DESCRIPTION REMOVED]; and (b) promptly inform Company at [CONTACT REMOVED], of any such observation, exposure or inquiry by non-Authorized Personnel.

8. Security Breach Procedures. In the event that the Company Materials are, at any time, lost, misplaced or otherwise falls into the possession of non-Authorized Personnel, or the occurrence of any other Security Breach, Contractor will (a) immediately inform Company at [CONTACT REMOVED]; and (b) make all legal efforts to promptly regain physical possession of the Company Materials.

9. Responsibility for Authorized Personnel. Contractor will be responsible for the acts or omissions of its Authorized Personnel, Approved Staff and Approved Building Managers under these Security Requirements.